Thus, 5/6 of the total number of members of a legislative council are indirectly elected and 1/6 are nominated by the governor. The members are elected in accordance with the system of proportional representation by means of a single transferable vote.

This scheme of composition of a legislative council as laid down in the Constitution is tentative and not final. The Parliament is authorised to modify or replace the same. However, it has not enacted any such law so far.

DURATION OF TWO HOUSES

 **Duration of Assembly**

Like the Lok Sabha, the legislative assembly is not a continuing chamber. Its normal term is five years from the date of its first meeting after the general elections. The expiration of the period of five years operates as automatic dissolution of the assembly. However, the governor is authorised to dissolve the assembly at any time (i.e., even before the completion of five years) to pave the way for fresh elections.

Further, the term of the assembly can be extended during the period of national emergency by a law of Parliament for one year at a time (for any length of time). However, this extension cannot continue beyond a period of six months after the emergency has ceased to operate. This means that the assembly should be re-elected within six months after the revocation of emergency.

 **Duration of Council**

Like the Rajya Sabha, the legislative council is a continuing chamber, that is, it is a permanent body and is not subject to dissolution. But, one-third of its members retire on the expiration of every second year. So, a member continues as such for six years. The vacant seats are filled up by fresh elections and nominations (by governor) at the beginning of every third year. The retiring members are also eligible for re-election and re-nomination any number of times.

MEMBERSHIP OF STATE LEGISLATURE

1. Qualifications

The Constitution lays down the following qualifications for a person to be chosen a member of the state legislature.

1. He/she must be a citizen of India.
2. He/she must make and subscribe to an oath or affirmation before the person authorised by the Election Commission for this purpose. In his/her oath or affirmation, he/she swears –
    1. To bear true faith and allegiance to the Constitution of India
    2. To uphold the sovereignty and integrity of India
3. He/she must be not less than 30 years of age in the case of the legislative council and not less than 25 years of age in the case of the legislative assembly.